



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: A Resolution Approving the Jolly Rogers Urban Renewal Plan and Project Pursuant to Wyoming Statute § 15-9-110.
Date: June 10, 2024

Background:

The item for consideration is a **Resolution**.

The proposed Governing Body review schedule is as follows:

- Introduction and Public Hearing June 10, 2024
- Public Services Committee June 18, 2024
- Final Consideration June 24, 2024

Summary:

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021, authorizing the creation and use of powers for the Urban Renewal Authority. Included within the Urban Renewal Powers is the ability to make Urban Renewal Plans and Projects. The attached plan serves to establish the Jolly Rogers Urban Renewal Plan and Project for the City of Cheyenne. The Governing Body adopted a Resolution on July 10, 2023, declaring the area as blight pursuant to § 15-9-107, thus making the area eligible for an Urban Renewal Plan and Project. The Jolly Rogers Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified, all authorized urban renewal activities, the project financing (including tax increment financing), the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan.

The Urban Renewal Authority Board considered the plan at their May 8, 2024, meeting and unanimously recommended approval subject to staff's recommendation. The item was then heard at the May 20, 2024, Planning Commission meeting and was unanimously approved by the Commission. The plan and project reviewed by the Planning Commission reflected the conditions of URA approval. The Planning Commission staff report is attached and unchanged, except that the plan and project is attached to the resolution instead of the staff report.

Attachments:

1. Resolution
2. Planning Commission Staff Report (Note, the Plan and Project has been omitted because it is reincluded as Attachment A of the Resolution).

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING THE JOLLY ROGERS URBAN RENEWAL PLAN AND THE JOLLY ROGERS URBAN RENEWAL PROJECT PURSUANT TO WYOMING STATUTE SECTION 15-9-110."

WHEREAS, pursuant to Resolution No. 6334 and under Wyoming Statute 15-9-101, *et seq.*, the City of Cheyenne found certain areas to be appropriate for an urban renewal project, including the "Jolly Rogers Study Area" as described in Resolution No. 6334;

WHEREAS, Resolution No. 6334 was adopted following a public hearing on July 10, 2023 and was found to be in conformity and appropriate for an urban renewal project pursuant to Wyoming Statute Section 15-9-107;

WHEREAS, on May 8, 2024, the City Urban Renewal Authority Board: (i) reviewed the Jolly Rogers Urban Renewal Plan for the Jolly Rogers Urban Renewal Project; (ii) found the Jolly Rogers Urban Renewal Plan to be in conformity with PlanCheyenne; and, (iii) recommended that the Planning Commission recommend approval of the Jolly Rogers Urban Renewal Plan for the Jolly Rogers Urban Renewal Project in the form presented to the Urban Renewal Authority Board;

WHEREAS, Wyoming Statute Section 15-9-108 requires that before approving an urban renewal project, the Governing Body shall have submitted the applicable urban renewal plan to the City Planning Commission, for review and recommendations as to its conformity with PlanCheyenne, which is the general plan for the development of the City of Cheyenne;

WHEREAS, on May 20, 2024, the City Planning Commission: (i) reviewed the Jolly Rogers Urban Renewal Plan for the Jolly Rogers Urban Renewal Project; (ii) found the Jolly Rogers Urban Renewal Plan to be in conformity with PlanCheyenne; and, (iii) recommended that the Governing Body adopt the Jolly Rogers Urban Renewal Plan for the Jolly Rogers Urban Renewal Project in the form presented to the Planning Commission;

WHEREAS, on May 29, 2024, and June 5, 2024, notice of the public hearing required by Wyoming Statute Section 15-9-109(b) was published in a newspaper having a general circulation in the area;

WHEREAS, on June 3, 2024, notice was mailed to all affected taxing agencies and property owners in the Jolly Rogers Urban Renewal Plan and Project area;

WHEREAS, on June 10, 2024, the Governing Body held a public hearing on the Jolly Rogers Urban Renewal Plan and Project in accordance with Wyoming Statute Section 15-9-109(a);

WHEREAS, the Governing Body has reviewed the Jolly Rogers Urban Renewal Plan and the Jolly Rogers Urban Renewal Project, which is attached hereto and incorporated herein as Attachment A, and, for the reasons set forth in such plan is able to make, and hereby makes, the following findings:

- (i) The Jolly Rogers Urban Renewal Plan conforms to PlanCheyenne, and is consistent with definite local objectives respecting infill opportunities, locations for future revitalization, downtown revitalization and mix of uses, infill and revitalization incentives, building reuse, mix of activities downtown, and downtown placemaking; and,
- (ii) The Jolly Rogers Urban Renewal Plan is sufficiently complete to indicate land acquisition, demolition and removal of structures, redevelopment, improvements, and rehabilitation as may be proposed to be carried out in the urban renewal area, zoning and planning changes, if any, land used, maximum densities and building requirements;

WHEREAS, the Governing Body has reviewed the Jolly Rogers Urban Renewal Plan and the Jolly Rogers Urban Renewal Project, and, for the reasons set forth in such plan is able to make, and hereby makes, the following findings:

- (i) Because the Jolly Rogers Urban Renewal Plan does not propose relocating any residential properties, there is no need to designate a method for relocation of families displaced from the urban renewal area;
- (ii) The Jolly Rogers Urban Renewal Plan conforms to PlanCheyenne as a whole;
- (iii) The Jolly Rogers Urban Renewal Plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity of the site covered by the Jolly Rogers Urban Renewal Plan; and,
- (iv) The Jolly Rogers Urban Renewal Plan affords maximum opportunity, consistent with the municipality's needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise;

WHEREAS approval of the Jolly Rogers Urban Renewal Plan and Project authorizes division of property taxes pursuant to Wyoming Statute Section 15-9-120 for Lot 1, Block 1, Jolly Rogers Subdivision, all rights-of-way adjacent to the lots and block referenced here-in, and all future divisions of said lands Cheyenne, Wyoming; and

WHEREAS, division of property taxes shall be collected and deposited into the Urban Renewal Fiduciary Fund and segregated for the purpose of the Urban Renewal Authority.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body of the City of Cheyenne, Wyoming, hereby approves the Jolly Rogers Urban Renewal Plan and Jolly Rogers Urban Renewal Project as shown in Attachment A.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



Jolly Rogers Urban Renewal Plan and Project

City of Cheyenne
Spring 2024

Stencil Group | AVI, PC.



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Attachment A
pg. 1 of 12

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Introduction



The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021 authorizing the creation and use of powers for the Urban Renewal Authority. This action fulfilled the requirements in Wyo. Stat. § 15-9-106, § 15-9-107, § 15-9-133, and § 15-9-134 as the Governing Body adopted a resolution declaring one or more slum or blighted areas in the community and that the redevelopment of such areas are necessary for the health, safety, morals or welfare of the community; and the Governing Body delegated the authorities of Urban Renewal to the Cheyenne Urban Renewal Authority. By completing the previous actions and pursuant to Wyo. Stat. § 15-9-106, the City of Cheyenne has completed the prerequisites to exercise the authority conferred by the Wyoming Urban Renewal Code.

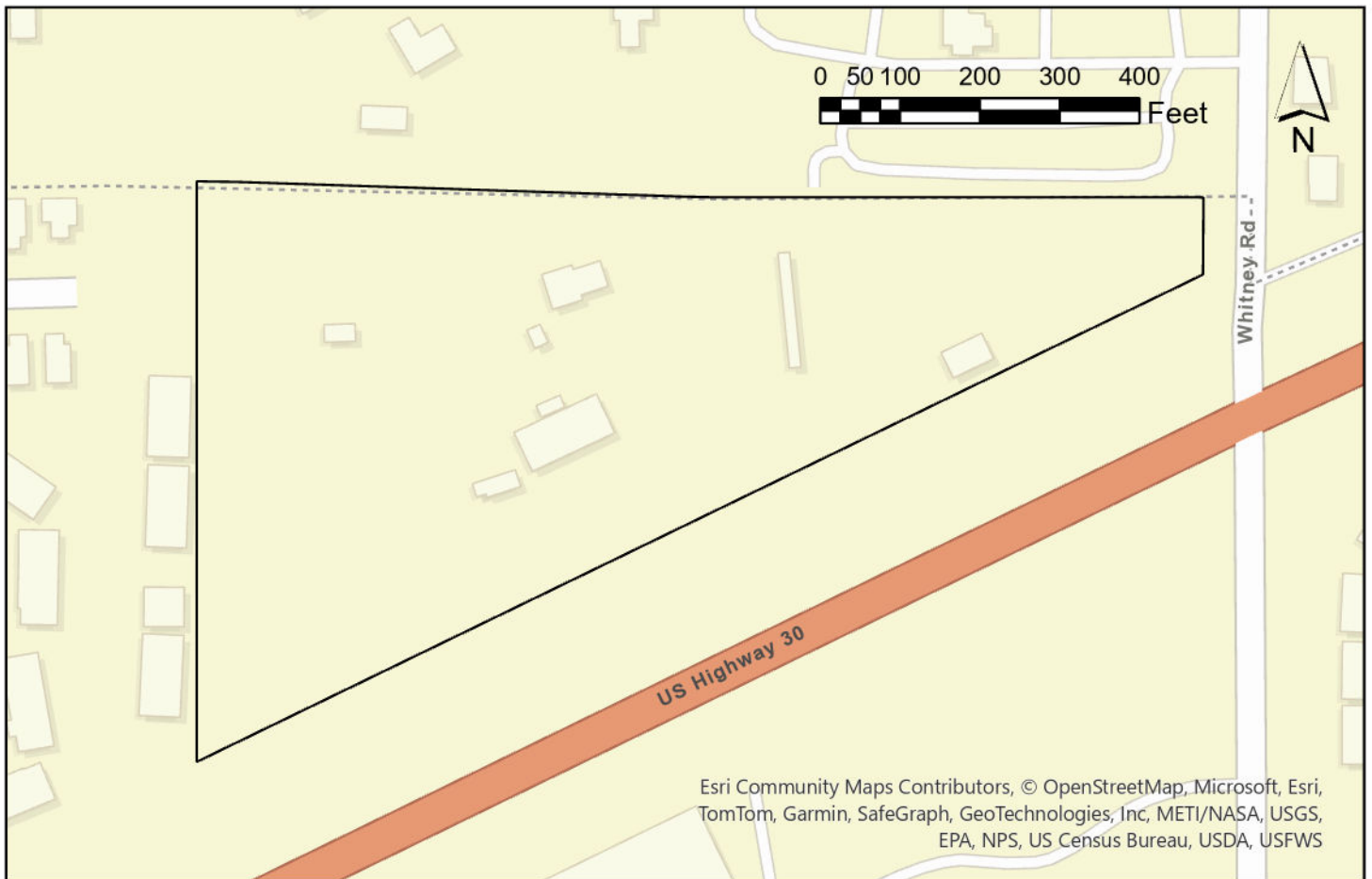
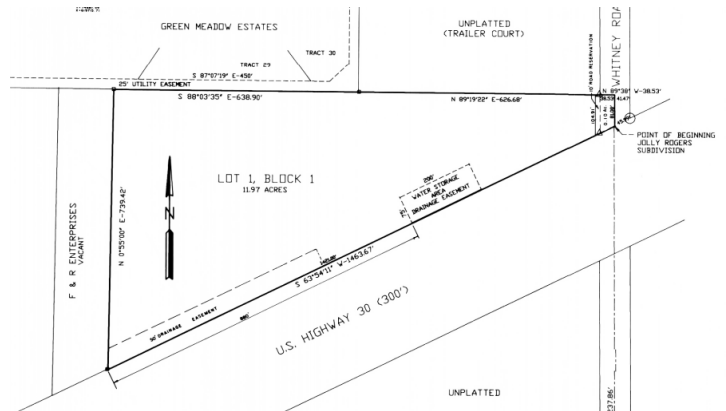
This plan serves to establish the Jolly Roger Urban Renewal Plan and Project for the City of Cheyenne. The Jolly Roger Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified in the project area, all authorized urban renewal activities, the project financing, the term of the

plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan. The Jolly Rogers Urban Renewal Plan will be referred to the Urban Renewal Authority and City Planning Commission for recommendations. The plan and recommendations will be introduced before the Governing Body for final consideration through Resolution. The creation of the plan and adoption thereof serves to enable and fulfill Wyo. Stat. § 15-9-107 through § 15-9-111, § 15-9-113, § 15-9-115 through § 15-9-116, and § 15-9-119 through § 15-9-132.

The Jolly Roger redevelopment is proposed to be a 194 apartment complex on the west lot and to-be-determined uses on the east lot. Once subdivided, both lots will be in the Plan and Project area. It is proposed that the City of Cheyenne will utilize its Urban Renewal powers to aid the redevelopment. The City plans to use tax increment financing (TIF), enabled by Wyo. Stat. § 15-9-120, to aid in the completion of these objectives. This plan is submitted to the City of Cheyenne for consideration by AVI, PC on behalf of Stencil Group.

Urban Renewal Boundaries

The Jolly Rogers Urban Renewal Plan encompasses all of Lot 1, Block 1 of the Jolly Rogers Subdivision. It is anticipated that the site will be subdivided into two lots which will be eligible for Urban Renewal activities. The Urban Renewal Plan and Project will also include all adjacent rights-of-way for any necessary public improvements. The image to the right depicts the plat of the site from the County Assessor while the image below shows the parcel boundaries on a clean base map.



Conditions Survey

The image below discusses the findings from the City of Cheyenne on the conditions of blight for the subject property. The City found that the site contains deteriorated or deteriorating structures; predominance of defective or inadequate street layout; faulty lot layout in relation to size, accessibility or usefulness; and unsanitary or unsafe conditions. The excerpts from each condition on the blight study can be found on the following page.

Study Area Boundaries



Conditions Survey

The Jolly Rogers blight study was conducted by Lonnie Olson on May 8, 2023. The summary of the blight conditions found on-site are as follows from the study with the blight checklist illustrated on the right.

1. Deteriorated or Deteriorating Structures

The Jolly Rogers study area contains several examples of deteriorated or deteriorating structures. Two of the buildings on the Jolly Rogers property are in poor condition with one of them missing portions of one wall. In addition to the building missing a wall, other buildings in the area show evidence of deterioration. The prevalence of deteriorating buildings as depicted in the supporting photographs fulfills this condition of blight

2. Predominance of Defective or Inadequate Street Layout

The Jolly Rogers property is approximately 12 acres with only two accesses that is off a major highway and the other could cause traffic conflicts with its proximity to the highway. The lot lacks circulation with the adjacent neighborhoods and has no safe pedestrian connectivity. The street network through the area is not sufficient for urban development and connections will need to be planned and built-in accordance with the reconstruction of U.S. Highway 30. Due to the faulty street network through the Jolly Rogers, the lack of adequate access, and how one of the two accesses to the site have the potential to create traffic conflicts, staff is satisfied this condition of blight is met.

3. Faulty Lot Layout in Relation to Size Accessibility or Usefulness

The Jolly Rogers property is large lot with only two accesses with one off a major highway and the other could cause traffic conflicts with its proximity to the highway. The lot is an abnormal shape with one street frontage only having approximately ~100 feet of frontage where the other street frontage has over 1,000 feet. The size and shape of the block combined with their limited lack of quality access connections yield a faulty lot layout in relation to size, accessibility, and usefulness; thus, meeting this condition of blight.

4. Unsanitary or Unsafe Conditions

Staff noted the Jolly Rogers study area lacked pedestrian connectivity. The lack of internal connections through the site lead to accessibility issues and a lack of pedestrian connections. The lack of pedestrian connectivity along a major Highway has the potential to create unsafe conditions for those who use alternative modes of transportation. The site was home to an RV service area which could have some potential environmental contamination from the service area and if the site was used as a waste dump. The lack of pedestrian access and potential of environmental contamination yields unsafe conditions, thus, meeting this condition of blight.

City of Cheyenne – Blight Survey		
Location: <i>Jolly Rogers</i>		
Completed by: <i>Lonnie Olson</i>		
Date Surveyed: <i>5/8/23</i>		
Criteria:	Check if this exists on site:	Description of Conditions:
Deteriorated or Deteriorating Structures	☒	<i>Multiple structures are in poor condition with signs of paint chipping and one missing part of a wall</i>
Predominance of Defective or Inadequate Street Layout	☒	<i>Approximately 12 acre lot with poor connectivity adjacent to major Highway with an access that has potential to cause vehicular conflicts</i>
Faulty Lot Layout in Relation to Size, Accessibility or Usefulness	☒	<i>The lot is an abnormal shape with one side having very little frontage</i>
Unsanitary or Unsafe Conditions	☒	<i>The site lacks adequate pedestrian connectivity as with surrounding properties</i>



Authorized Urban Renewal Activities

The conditions identified in the plan and project area yield that the property is in need of rehabilitation and that such redevelopment is in the best interest of the public health, safety, morals and welfare of the community. This Urban Renewal Plan and Project proposes the City of Cheyenne use the Urban Renewal powers authorized in Wyo. Stat. § 15-9-113 to:

- ◇ To the maximum extent possible under Wyoming law and the Wyoming Constitution, aid in site acquisition costs;
- ◇ relocate utilities as necessary, specifically the water and sewer lines on the southern property line;
- ◇ improve stormwater facilities on the site;
- ◇ remediate any environmental contamination;
- ◇ improve any streets and curb, gutter, and sidewalks; and
- ◇ to the maximum extent possible under Wyoming law and the Wyoming Constitution, facilitate economic development and site beautification.

Tax Increment Financing

Pursuant to Wyo. Stat. § 15-9-120, the West Downtown Urban Renewal Plan authorizes the use of tax increment financing for the Urban Renewal Project Area as identified in the Urban Renewal Boundaries. Upon passage of the Resolution for this Urban Renewal Plan, taxes levied upon taxable property in:

- ◇ Lot 1, Block 1 Jolly Rogers Subdivision (and any subdivisions of the property thereof)

shall be divided as follows:

- a. *That portion of the taxes which would be produced by the rate upon which the tax is levied each year by or for each of the taxing agencies upon the total sum of the assessed value of the taxable property in the urban renewal project as shown upon the assessment roll used in connection with the taxation of the property by the taxing agency, last equalized prior to the effective date of the urban renewal project shall be allocated to and, when collected, paid into the funds of the respective taxing agencies as taxes by or for those taxing agencies on all other property are paid; and*
- b. *That portion of the levied taxes each year in excess of the amount specified in paragraph (a) of this section shall be allocated to and, when collected, paid into a special fund of the City of Cheyenne to pay the principal and interest on loaned money advanced to, or any indebtedness (whether funded, refunded, assessed, or otherwise) incurred by the City or the Urban Renewal Authority, unless the total assessed valuation of the taxable property for the aforementioned properties exceeds the total assessed value of the taxable property in the project as shown by the last equalized assessment roll referred to in paragraph (a) of this section, all of the taxes levied and collected upon the taxable property in the urban renewal project shall be paid into the funds of the respective taxing agencies. When any loans, advances and indebtedness, if any, and interest have been paid in full, all monies thereafter received from taxes upon the taxable property in the urban renewal project shall be paid into the funds of the various taxing agencies as taxes on all other property are paid.*

Tax Increment Financing

The tax increment will be used to fulfill the purposes of Wyo. Stat. § 15-9-121, which reads:

In any urban renewal plan or in proceedings for the advance of monies or making of loans or the incurring of any indebtedness by the municipality or agency to finance or refinance in whole or in part the urban renewal project, the portion of the taxes specified in W.S. 15-9-120(a)(ii) may be irrevocably pledged for the payment of the principal of and interest on those loans or advances or that indebtedness.

The City will utilize the TIF to pay principal and interest on loans the City or a designated developer(s) receives for the purposes of carrying out the activities specified in this plan.

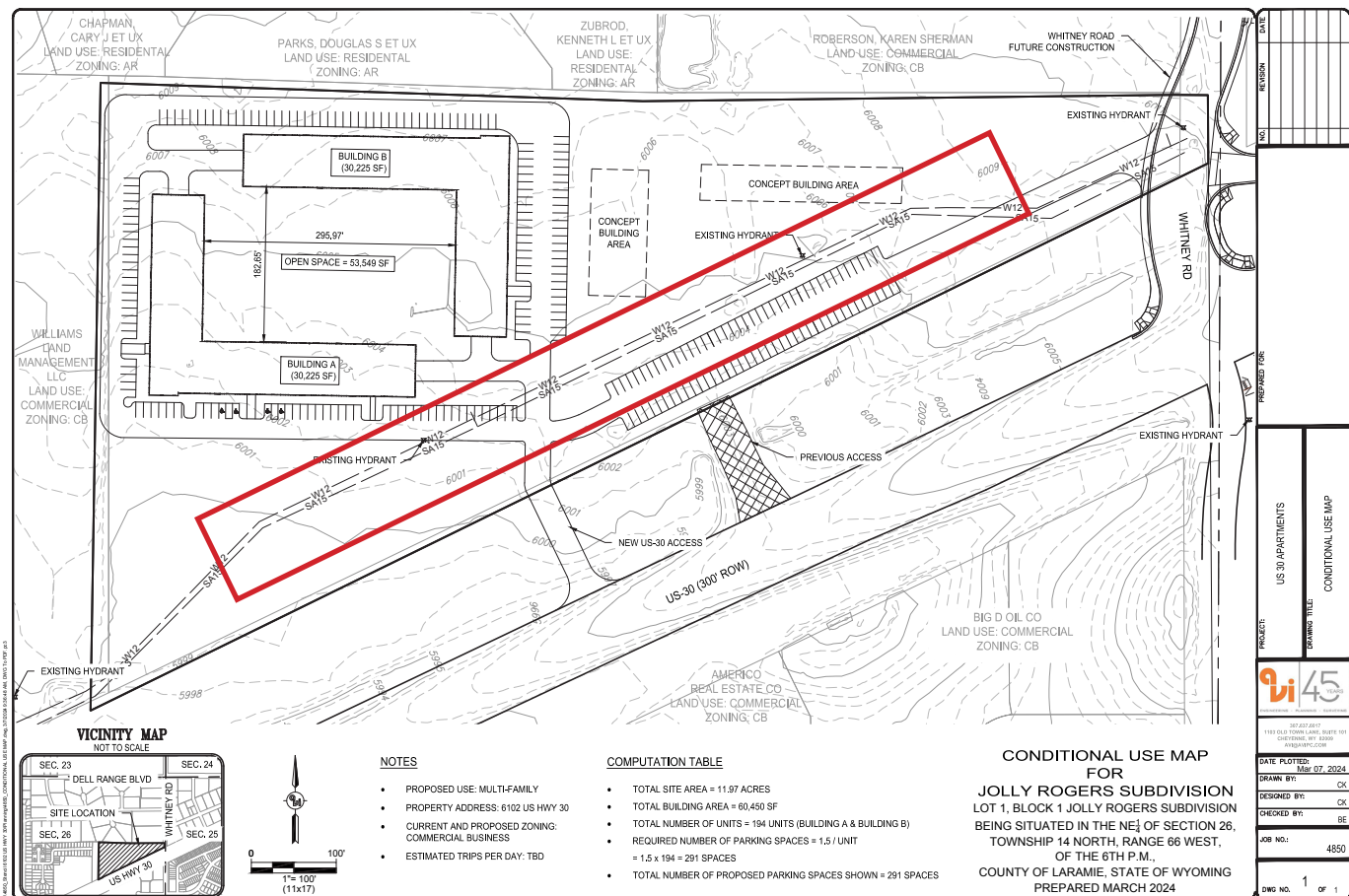


Plan Financing

As mentioned in the previous section, the Jolly Roger Urban Renewal Plan and Project will utilize tax increment financing. The base tax collected of the property included in the plan boundaries is \$6,110.83. Like other Urban Renewal Plans and Project in the City of Cheyenne each project will be required to perform individually, meaning the project will only be able to collect TIF from the increment it creates. The west lot will include the development of 194 apartment units comprised of studio, one-bedroom, and two-bedroom units while the east lot's development is yet to be determined. Each lot will be eligible to utilize the increment that it produces individually; however, they may work together for the relocation of the water and sewer lines. The TIF projections for the specified project will be provided once the Plan and Project is approved. These projections will be based off of nearby apartment projects; such as Saddle Ridge and Holmes corner.

Based on similar projects in the community, such as the Pointe Plaza, the increment is projected to be approximately \$250,000 per year.

The image below shows the utility lines in the conditional use map to be realigned with tax increment financing to provide further utilization of the proposed site.



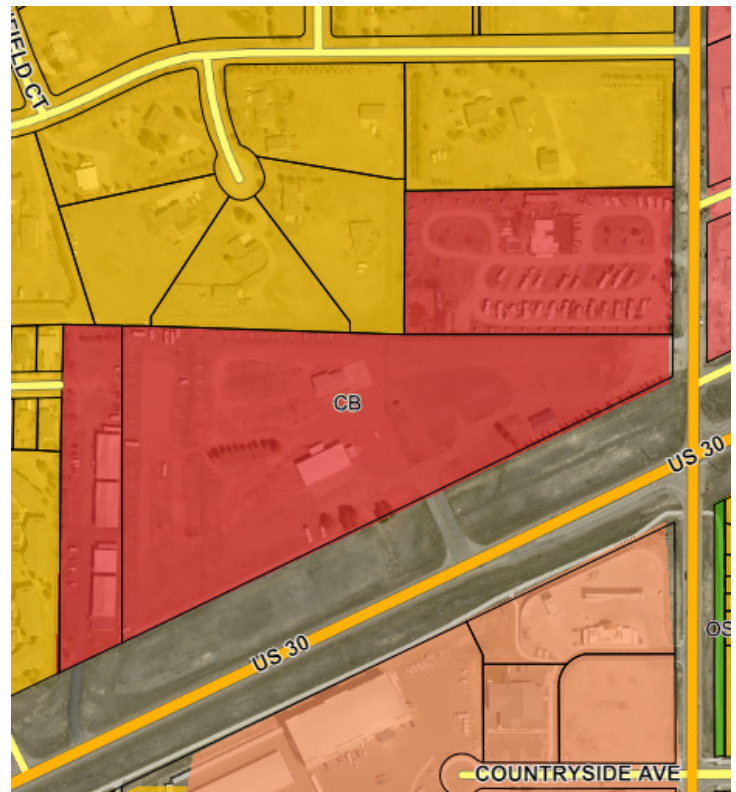
Conformance with Comprehensive Plan

PlanCheyenne is the Comprehensive Plan for the City of Cheyenne. PlanCheyenne was last updated in 2014. The Jolly Rogers Urban Renewal Plan and Project substantially conforms to the Comprehensive Plan. Notably, the Urban Renewal undertaking addresses:

- ◇ Policy 1.1.B: Flexibility to Respond to Market Demands
- ◇ Policy 1.3.B: Variety of Housing in Neighborhoods
- ◇ Policy 1.4.B: Locations for Future Revitalization
- ◇ Policy 2.3.A: Mix of Housing Types
- ◇ Policy 2.3.B: Higher Density Housing

The future land use map designates this lot as Community Business. The Community Business category emphasizes a range of retail and office uses to serve neighborhoods and the community and region, and some align with designated Commercial/Regional Activity Centers. Many of the Community Business areas are already established and thriving, while others are in need of future reinvestment or redevelopment to retain their role as important destinations for commercial activities.

Where permitted by underlying zoning, multi-family housing (e.g., apartments) is appropriate if designed as part of an integrated mixed-use concept plan. As mentioned, the west lot is proposed for multifamily at this time and the east may be used for commercial in the future. Furthermore; the Board of Adjustment granted a conditional use for Multi-Family development at this location, solidifying the proposed use's conformance with the comprehensive plan. The map to the left illustrates the subject property's future land use designation.

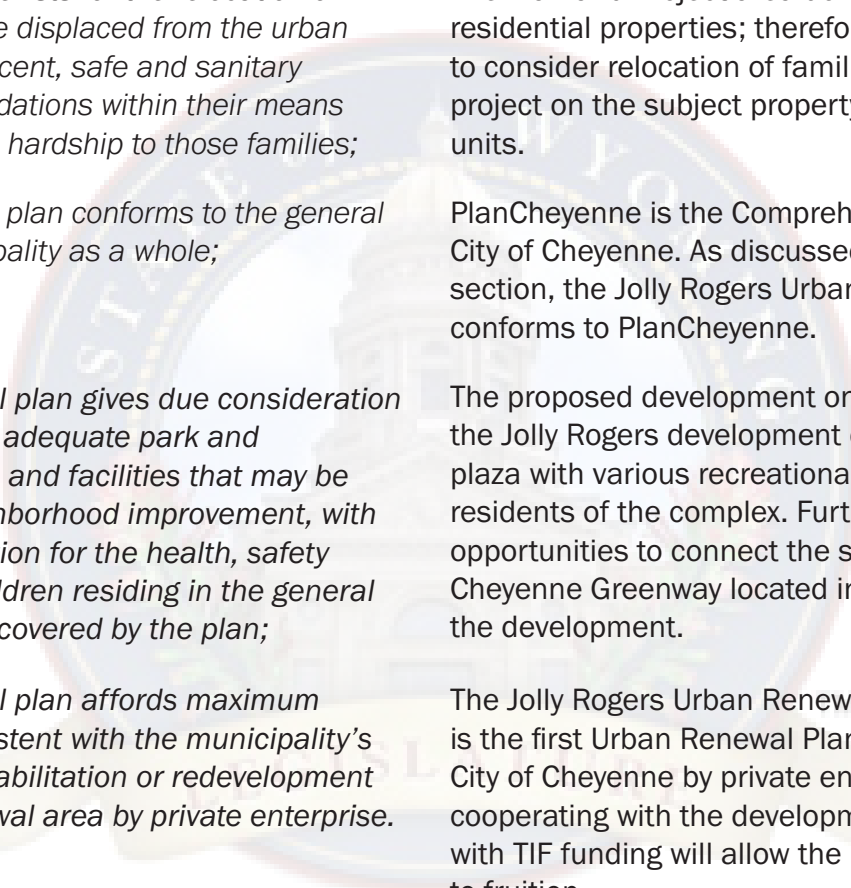


Conformance with §15-9-110

In order for an Urban Renewal Plan and Project to be approved the Governing Body must find that the plan meets the review criteria found in Wyo. Stat. § 15-9-110(a) and (b). Due to the fact that the Jolly Rogers Urban Renewal Plan does not consist of open space to be acquired by the municipality, the plan will not address the findings of Wyo. Stat. § 15-9-110(b). Pursuant to Wyo. Stat. § 15-9-110(a), the plan achieves the following requirements:

Criterion

Conformance

- 
- i. *A feasible method exists for the relocation of families who will be displaced from the urban renewal area in decent, safe and sanitary dwelling accommodations within their means and without undue hardship to those families;*

The Plan and Project area do not consider any residential properties; therefore, there is no need to consider relocation of families. The proposed project on the subject property will include 194 units.
 - ii. *The urban renewal plan conforms to the general plan of the municipality as a whole;*

PlanCheyenne is the Comprehensive Plan for the City of Cheyenne. As discussed in the previous section, the Jolly Rogers Urban Renewal Plan conforms to PlanCheyenne.
 - iii. *The urban renewal plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity of the site covered by the plan;*

The proposed development on the west parcel of the Jolly Rogers development contains a central plaza with various recreational amenities for residents of the complex. Furthermore; there are opportunities to connect the site to the Greater Cheyenne Greenway located in close proximity to the development.
 - iv. *The urban renewal plan affords maximum opportunity, consistent with the municipality's needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise.*

The Jolly Rogers Urban Renewal Plan and Project is the first Urban Renewal Plan submitted to the City of Cheyenne by private enterprise. The City cooperating with the development of the property with TIF funding will allow the project vision to come to fruition.

Plan Term and Amendment Procedures

The Term of the Jolly Rogers Urban Renewal Plan is 25 years from the approval of the Resolution by the Governing Body. The Plan shall be effective pursuant to Wyo. Stat. § 15-9-111(b). If the Governing Body deems that all projects have been accomplished and all debts incurred to finance those projects and all expenses of the Authority have been repaid, the Governing Body may declare this Plan fully implemented and the total tax collections derived from this Plan Area shall be paid into the funds of the appropriate taxing entity.

This plan shall be amended pursuant to Wyo. Stat. § 15-9-111(a). All modifications to this Plan will be referred from the Urban Renewal Authority Board to the City of Cheyenne Governing Body and shall be approved by Resolution.



Attachment A
pg. 12 of 12



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Planning Commission
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: Jolly Rogers Urban Renewal Plan and Project
Date: May 20, 2024

Recommended Motion:

Move to **recommend approval** of the Plan and Project noting the plan has been modified to reflect the Urban Renewal Authority Board's recommendation.

Background:

The Urban Renewal Authority (URA) Board reviewed this item at their meeting on May 8, 2024, and recommended approval with the condition that "Objectives 1 and 6 be prefaced by the words "To the maximum extent possible allowed under Wyoming law and the Wyoming Constitution."

Attached are the documents submitted to the URA Board meeting. The attached Plan and Project has been modified to reflect conditions recommended by the Urban Renewal Authority Board.

Attachments:

1. Memo to the URA Board
2. Jolly Rogers Urban Renewal Plan and Project (Updated to reflect Urban Renewal Authority Board Recommendation)



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Urban Renewal Authority Board
From: Charles Bloom, AICP, Planning and Development Director
Subject: Jolly Rogers Urban Renewal Plan and Project
Date: May 8, 2024

Recommended Motion:

Move to **recommend approval** of the Plan and Project with the following modification:

1. Objectives 1 and 6 be prefaced by the words "To the maximum extent possible allowed under Wyoming law and the Wyoming Constitution,"

Synopsis:

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021, authorizing the creation and use of powers for the Urban Renewal Authority. This action fulfilled the requirements in Wyo. Stat. § 15-9-106, § 15-9-107, § 15-9-133, and § 15-9-134 as the Governing Body adopted a resolution declaring one or more slum or blighted areas in the community and that the redevelopment of such areas are necessary for the health, safety, morals or welfare of the community; and the Governing Body delegated the authorities of Urban Renewal to the Cheyenne Urban Renewal Authority. By completing the previous actions and pursuant to Wyo. Stat. § 15-9-106, the City of Cheyenne has completed the prerequisites to exercise the authority conferred by the Wyoming Urban Renewal Code.

This plan serves to establish the Jolly Rogers Urban Renewal Plan and Project for the City of Cheyenne. The Governing Body adopted Resolution No. 6334 on July 10th, 2023, declaring the area as blight pursuant to § 15-9-107, thus making the area eligible for an Urban Renewal Plan and Project. The Jolly Rogers Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified in the project area, all authorized urban renewal activities, the project financing, the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan. Upon review and recommendation by the Urban Renewal Authority Board, the Plan will be reviewed by the Planning Commission for recommendation to the Governing Body. The Governing Body may elect to adopt the Plan by resolution. The creation of the plan and adoption thereof serves to enable and fulfill Wyo. Stat. § 15-9-107 through § 15-9-111, § 15-9-113, § 15-9-115 through § 15-9-116, and § 15-9-119 through § 15-9-132.

The Jolly Rogers redevelopment proposes development of 194 multifamily residential units on the eastern portion of the project area. On April 18, 2024, the Board of Adjustment approved a conditional use request to allow multi-family at this location.

Based on similar construction styles in the community, the developer estimates the increment generated for this project to be \$250,000 annually. The Plan and Project proposes authorizing TIF expenses to:

1. Aide in site acquisition costs;
2. Relocate utilities as necessary, specifically the water and sewer lines on the southern property line;
3. Improve stormwater facilities on the site;
4. Remediate any environmental contamination;
5. Improve any streets and curb, gutter, and sidewalks;
6. Facilitate economic development and site beautification.

Staff has reviewed the requests for consistency with Wyo. Stat. § 15-9-113 and the Wyoming Constitution (Specifically, Article 16, Section 6 (a) (i) and Article 3, Section 36).

Relevant sections of the State Constitution are as follows:

- Article 16, Section 6, Loan of credit; donations prohibited; works of internal improvement.
“Neither the state nor any county, city, township, town, school district, or any other political subdivision, shall . . . loan or give its credit or make donations to or in aid of any individual, association or corporation, except for necessary support of the poor . . .”
- Article 3, Section 36, Prohibited appropriations.
“No appropriation shall be made for charitable, industrial, educational or benevolent purposes to any person, corporation or community not under the absolute control of the state, nor to any denominational or sectarian institution or association.”

The above-mentioned sections of the State Constitution prohibit a political subdivision from loaning or gifting funding to a private individual, corporation, or similar entity unless they clearly serve a public purpose.

Wyoming’s Urban Renewal program has been dusted off by the City of Cheyenne after decades of inactivity in the State. Cheyenne is taking the lead and other communities are watching closely. Cheyenne has been careful with the programs within the Urban Renewal Statutes (Urban Renewal and Downtown Development Authority) to ensure that all funds passing through the programs have a clear public purpose.

Staff believes that requested items 2, 3, 4, and 5 clearly meet the intent of Wyoming’s Urban Renewal Statutes and the State Constitution. Staff has concerns with the entirety of request number 1, the economic development provisions identified in section 6, and the vagueness of site beautification identified in section 6. The Plan and Project document does not clearly identify how items 1 and 6 clearly serve a public purpose.

Overall, approval of the plan will help aide redevelopment within an area determined as slum and blight. The City plans to use tax increment financing (TIF), enabled by Wyo. Stat. § 15-9-120, to aid in the completion of the requested objectives as conditioned in this approval.

Recommendation:

Staff recommends approval of the Plan and Project with the following modification:

1. Objectives 1 and 6 be prefaced by the words "To the maximum extent possible allowed under Wyoming law and the Wyoming Constitution,"

Attachments:

1. Jolly Rogers Urban Renewal Plan and Project